

DATE FILED: December 24, 2014 2:55 PM

FILING ID: 5204566D506B5
CASE NUMBER: 2014CV30875

DISTRICT COURT, MESA COUNTY, COLORADO
125 North Spruce Street, Grand Junction, CO 81501

Plaintiff: Silo Romero

v.

Defendant: Helmerich & Payne International Drilling Co.

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Matthew Parmenter, Esq. No. 42937
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Attys. for Plaintiff: Silo Romero

▲ COURT USE ONLY ▲

Case No.

Div.

COMPLAINT AND JURY DEMAND

Plaintiff, Silo Romero, through his attorneys of record, KILLIAN DAVIS Richter & Mayle, PC, hereby submits this Complaint and Jury Demand, and in support thereof states as follows:

JURISDICTION AND VENUE

1. On December 27, 2012, and all other relevant times, Silo Romero ("Romero") was a resident of Mesa County, Colorado.
2. Helmerich & Payne International Drilling Co. ("H&P") is incorporated in the State of Delaware.
3. H&P's primary business office is located at 1437 South Boulder Avenue, Tulsa, OK, 74119.
4. H&P is authorized to do business in the State of Colorado, and is doing business in Mesa County, Colorado.

5. Jurisdiction is proper pursuant to section 13-1-124, C.R.S.
6. Venue is proper pursuant to C.R.C.P. 98(c)(1) and C.R.C.P. 98(c)(5).

GENERAL ALLEGATIONS

7. Plaintiff incorporates by reference all paragraphs in this Complaint.

Workplace Injury on May 8, 2009

8. Romero began working for H&P on July 23, 2008.
9. Romero was hired in Colorado.
10. Romero was paid in Colorado.
11. Romero paid Colorado income taxes.
12. Romero was covered under Colorado's workers' compensation statutes.
13. Romero's employment with H&P was subject to Colorado state law.
14. On May 8, 2009, Romero was injured while working for H&P in Vernal, Utah.
15. Romero was struck by a falling beam while working on H&P Rig #298.
16. The beam struck Romero's right arm.
17. Romero's right arm was fractured as a result of being struck by the falling beam.
18. Romero's right arm was surgically repaired by Jeffrey Nakano, M.D.
19. Dr. Nakano performed an open reduction internal fixation ("ORIF") on Romero's fractured right ulnar shaft.
20. As part of the ORIF, Dr. Nakano placed a metal plate and approximately 9 screws in Romero's right arm.
21. After the surgery, Romero resumed working for H&P.

Workers' Compensation Claim for May 8, 2009, Workplace Injury

22. As a result of the May 8, 2009, workplace injury, Romero received workers' compensation benefits under Colorado workers' compensation claim number 4-792-672.
23. A general admission of liability was filed on May 18, 2009.
24. Romero was placed at maximum medical improvement on March 15, 2010.
25. A final admission of liability was filed on January 24, 2011.
26. Romero was assigned a 7 percent scheduled impairment rating of the right upper extremity.
27. Romero's workers' compensation claim was closed on February 23, 2011.
28. Romero continued to work for H&P after his workers' compensation claim was closed.

July 2, 2012, Surgery on Right Arm

29. Romero continued to experience pain in his right arm after the fracture healed.
30. On June 1, 2012, Romero consulted with Michael Dolecki, M.D., regarding the continuing pain in his right arm.
31. Dr. Dolecki confirmed that the right arm fracture was completely healed.
32. Dr. Dolecki diagnosed Romero with metal irritation in his right forearm.
33. Dr. Dolecki recommended that the metal in Romero's right arm be removed.
34. Romero anticipated that he would miss 6 to 8 weeks of work while recovering from the surgery.
35. Romero told H&P that he needed surgery to remove the metal and that he would need time off to recover from the surgery.

36. David Thacker, a human resources representative for H&P, told Romero that he needed to “go through workers’ compensation” for the surgery.

37. Patricia Dixon, a H&P employee, was present when David Thacker told Romero that he needed to “go through workers’ compensation” for the surgery.

38. Romero had surgery to remove the metal on July 2, 2012.

39. The surgery was successful.

40. After recovering from the surgery, Romero resumed working for H&P.

Re-opening of Workers’ Compensation Claim

41. On August 31, 2012, Romero filed a petition to reopen his Colorado workers’ compensation claim number 4-792-672.

42. Romero filed the petition to reopen because of a change in his medical condition requiring surgery to remove the metal from his right arm.

43. Romero filed the petition to reopen based on his instructions from David Thacker that he needed to “go through workers’ compensation” for the surgery.

44. Romero continued to work for H&P while his petition to reopen was pending.

Termination on December 27, 2012

45. On December 27, 2012, Romero was working for H&P as a motor man on Rig #215 near Douglas, Wyoming.

46. Romero was told to report to Donald “Donny” Stevison’s (“Stevison”) office at the end of his shift.

47. Stevison was the pusher on the rig and Romero’s supervisor.

48. Adam Vigil (“Vigil”), a derrick hand on the rig, was also told to report to Stevison’s office.

49. Justin Petz (“Petz”), a driller on the rig, was also told to report to Stevison’s office.

50. Romero, Vigil, and Petz reported to Stevison's office at approximately 6:30 p.m. on December 27, 2012.

51. Stevison began the meeting by telling Vigil that he was giving him "a handwritten 302 and it's going in your file."

52. A "302" is a disciplinary write-up used by H&P.

53. Stevison then stated that he was giving a Romero a 302 for being "lazy."

54. Romero told Stevison that he was not lazy and that it was an insult.

55. Stevison told Romero that if he did not sign the 302, he was terminated.

56. Romero said "Alright."

57. Petz said that he was going to stick up for Romero because he was not lazy.

58. Vigil said that he agreed with Petz.

59. Stevison indicated that Stevinson could talk to Conly Pritchard, the superintendent, to "see what we can do about it."

60. Romero responded by stating: "I don't care who you talk to but if you really feel that way about me, then I guess you don't need me on your team."

61. Stevison responded: "You're right, I don't need you."

62. Stevison terminated Romero's employment with H&P.

63. Romero was not terminated due to insufficient or inadequate performance.

64. Romero was not terminated due to any misconduct.

65. Romero left Stevison's office to begin packing his gear.

66. After Romero left Stevison's office, Stevison told Vigil and Petz that they "need to watch out."

67. Stevison told Vigil and Petz that he terminated Romero because he “sued” (workers’ compensation claim) H&P.

68. Stevison told Vigil and Petz that the company “had it out for Si (Romero).”

69. Stevison told Vigil and Petz that he felt like he had an “ultimatum” from his supervisors and that he “didn’t want it to go this way.”

70. Vigil responded: “So it wasn’t about Si’s (Romero’s) performance.”

71. Stevison warned Vigil about filing a workers’ compensation claim because Vigil had previously slipped on ice while at work for H&P.

72. Stevison told Vigil that he could be terminated too if he filed a workers’ compensation claim.

73. Immediately after the meeting ended, Vigil told Romero what Stevison said about Romero’s termination from H&P.

74. Romero told Vigil that he was not suing H&P and that he had properly sought workers’ compensation coverage for his injury.

FIRST CLAIM FOR RELIEF –
WRONGFUL DISCHARGE BASED ON RETALIATION
FOR EXERCISING A SPECIFIC STATUTORY RIGHT
OR PUBLIC DUTY – WORKERS’ COMPENSATION CLAIM
***Martin Marietta Corp. v. Lorenz*, 823 P.2d 100 (Colo. 1992)**
***Lanthrop v. Entenmann’s Inc.*, 770 P.2d 1367 (Colo. App. 1989)**
CJI-Civ. 31:13 (2014 ed.)

75. Plaintiff incorporates by reference all paragraphs in this Complaint.

76. Romero was employed by H&P.

77. Romero had a right or privilege as a worker to file a petition to reopen his workers’ compensation claim without being retaliated against by H&P for filing a petition to reopen his claim.

78. Romero had a right or privilege as a worker to pursue workers' compensation benefits without being retaliated against by H&P for pursuing workers' compensation benefits.

79. Romero had a right or privilege as a worker to settle his workers' compensation claim without being retaliated against by H&P for settling his workers' compensation claim.

80. During the course of employment, Romero filed a petition to reopen his workers' compensation claim, pursued workers' compensation benefits, and settled his workers' compensation claim because he reasonably believed he had a right to exercise his right or privilege as a worker.

81. H&P was aware or reasonably should have been aware that Romero reasonably believed he had a right to exercise his right or privilege as a worker.

82. H&P discharged Romero because Romero exercised his right or privilege as a worker.

83. H & P constructively discharged Romero because Romero exercised his right or privilege as a worker.

84. H&P discharged Romero because he filed a petition to reopen his workers' compensation claim, pursued workers' compensation benefits, and/or settled his workers' compensation claims.

85. H & P constructively discharged Romero because he filed a petition to reopen his workers' compensation claim, pursued workers' compensation benefits, and/or settled his workers' compensation claims.

86. Romero incurred injuries, damages, and losses as a result of H&P discharging him for filing a petition to reopen his workers' compensation claim, pursuing workers' compensation benefits, and/or settling his workers' compensation claim.

DAMAGES

Bonidy v. Vail Valley Ctr. For Aesthetic Dentistry, P.C., 232 P.3d 277 (Colo. App. 2010)

CJI-Civ. 31:15 (2014 ed.)

87. Plaintiff incorporates by reference all paragraphs in this Complaint.

88. Romero incurred injuries, damages, and losses as a result of being wrongfully terminated by H&P for filing a petition to reopen his workers' compensation claim, pursuing workers' compensation benefits, and/or settling his workers' compensation claim.

89. Romero's injuries, damages, and losses include past and future economic losses, including but not limited to back pay, front pay, past lost benefits, future lost benefits, impairment of earning capacity; and loss of access to employment.

90. Romero's injuries, damages, and losses, include past and future non-economic losses, including pain and suffering, inconvenience, emotional stress, and impairment of the quality of life.

WHEREFORE, plaintiff requests:

- A. Judgment be entered against H&P for a monetary sum, in an amount to be proven at trial;
- B. Pre-judgment and post-judgment interest;
- C. Costs of litigation, including expert witness fees; and
- D. Such other and further relief as the court deems just and proper.

PLAINTIFF DEMANDS A JURY TRIAL OF SIX ON ALL ISSUES

DATED this 22nd day of December, 2014.

KILLIAN DAVIS
Richter & Mayle, PC

*Duly authorized original signature on file
at the offices of KILLIAN DAVIS Richter &
Mayle, P.C., pursuant to C.R.C.P. 121,
section 1-26(9)*

/s/ J. Keith Killian

J. Keith Killian, Esq.

No. 9042

Matthew Parmenter, Esq.

No. 42937

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